

25STCV24535 25STCV24535

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Case Number: 25STCV24535 Hearing Date: June 24, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 72

TENTATIVE

RULING

LAKEVIEW LOAN SERVICING, LLC,

Plaintiff,

v.

RONALD KEITH WILLIAMS JR., et al.,

Defendants.

Case No:

25STCV24535

Hearing Date: June 24, 2026

Calendar Number: 5

Plaintiff Lakeview Loan Servicing LLC ("Plaintiff") seeks

default judgment against Defendant Ronald Keith Williams Jr. ("Defendant").

Plaintiff requests:

(1) money judgment in the amount of \$583,366.65, consisting

of:

(a) damages in the amount of \$476,794.78;

(b) Escrow Advances in the sum of

\$21,882.88;

(c) Corporate Advances,

PMI, fees, late charge, and NSF in the sum of \$4,932.06;

(d) prejudgment interest in the

amount of \$72,470.41;

(e) costs in the amount of \$1,616.52;

and

(f) attorney's fees in the amount

of \$5,670.00.

The Court DENIES WITHOUT PREJUDICE Plaintiff's request for

default judgment as: (1) all parties against whom judgment is not sought have

not been dismissed; (2) Plaintiff has submitted insufficient evidence of

damages; (3) Plaintiff has not indicated whether attorney's fees are allowed by

statute or by agreement of the parties; and (4) Plaintiff has failed to provide interest computations.

Background

This is foreclosure action. On August 20, 2025, plaintiff

Lakeview Loan Servicing, LLC ("Plaintiff") filed a complaint for judicial

foreclosure against defendants Ronald Keith Williams Jr. ("Defendant"), State

of California Employment Development Department, The Secretary of Housing and

Urban Development, California Housing Finance Agency, Mortgage Electronic

Registration Systems Inc., and DOES 1 through 10, inclusive (collectively,

"Defendants").

The

complaint alleges, inter alia, that the real property on which Plaintiff

seeks judicial foreclosure is commonly known as 3122 W. 60th Street, Los

Angeles, CA 90043 (the "Subject Property"). (Compl., ¶ 2.) Plaintiff holds a

security interest in the Subject Property as the current beneficiary of a Deed

of Trust recorded on October 27, 2022 as Instrument Number 20221023331 in the

Official Records of Los Angeles County. (Compl., ¶ 4.) It is alleged that

Defendant holds an ownership interest on the Subject Property and is a borrower

under Plaintiff's Deed of Trust and Note. (Compl., ¶ 5.) Defendant acquired

title to the Subject Property by Grant Deed. (Compl., ¶ 12; Exh. 1.)

On

or about October 21, 2022, Defendant obtained a loan in the principal amount of \$561,639.00 from Academy Mortgage Corporation and executed a Promissory Note and Deed of Trust securing the loan against the Subject Property. (Compl., ¶ 13; Exhs. 2-3.) The Deed of Trust was assigned to Plaintiff via an Assignment of Deed of Trust recorded in the Official Records of Los Angeles County on May 1, 2023 as Instrument Number 20230278738. (Compl., ¶ 14; Exh. 4.) “Plaintiff and Defendant Borrower entered into a Modification of Deed of Trust which was recorded September 15, 2023 as Instrument No. 20230616986 and a Loan Modification Agreement which was recorded on June 13, 2024 as Instrument No. 20240387696.” (Compl., ¶ 15; Exh. 5.) “Plaintiff is now, and at all times relevant to this action was, the beneficiary of the Deed of Trust and authorized to enforce it.” (Compl., ¶ 16.) “Defendant Williams has defaulted in payments due under the Note and Deed of Trust, and has failed to cure the default despite timely demand. Accordingly, Plaintiff seeks to foreclose on its Deed of Trust.” (Compl., ¶ 17.)

On November 20, 2025, judgment pursuant to stipulation was entered as to defendant The Secretary of Housing and Urban Development (“HUD”).

On December 30, 2025, Plaintiff filed a stipulation and proposed order for non-participation of defendants Mortgage Electronic

Registration Systems, Inc. ("MERS") and California Housing Finance Agency

("HFA"); however, such stipulation and proposed order was rejected on January

6, 2026, due to the lack of signatures of all parties to the lawsuit. (See

01/06/26 Notice of Rejection.)

On March 23, 2026, at the request of Plaintiff, default was

entered against Defendant.

On May 21, 2026, pursuant to stipulation, judgment was

entered as to defendant State of California Employment Development Department

("SCEDD").

On June 9, 2026, Plaintiff filed the instant default

judgment package.

Request for Judicial Notice

Plaintiff

requests that the Court takes judicial notice of the following documents:

1. Grant Deed

recorded on October 27, 2022 in the Los Angeles County Recorder's Office as

Instrument Number 20221023330 (Exh. 1);

2. Deed of Trust

recorded in the Official Records of Los Angeles County on October 27, 2022 as

Instrument Number 20221023331 (Exh. 3);

3. Assignment of

Deed of Trust recorded in the Official Records of Los Angeles County on May 1, 2023 as Instrument Number 20230278738 (Exh. 4); and

4. Modification of

Deed of Trust recorded in the Official Records of Los Angeles County on September 15, 2023 as Instrument Number 20230616986 (Exh. 5).

The Court GRANTS

Plaintiff's request for judicial notice. (Evid. Code §§ 452, 453.)

Legal Standard

Code of Civil Procedure, section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Form CIV-100 Request for Court Judgment, and:

(1) Proof of service of the complaint and summons;

(2) A dismissal of

all parties against whom judgment is not sought (including Doe defendants) or

an application for separate judgment under CCP § 579, supported by a showing of

grounds for each judgment (CRC 3.1800(a)(7));

(3) A declaration

of non-military status as to the defendant (typically included in Form CIV-100)

(CRC 3.1800(a)(5));

(4) A brief summary of the case (CRC 3.1800(a)(1));

(5) Admissible

evidence supporting a prima facie case for the damages or other relief

requested (Johnson v. Stanhiser (1999)

72 Cal.App.4th 357, 361-362);

(6) Interest computations as necessary (CRC 3.1800(a)(3));

(7) A memorandum of

costs and disbursements (typically included in Form CIV-100 (CRC 3.1800(a)(4));

(8) A request for

attorney's fees if allowed by statute or by the agreement of the parties (CRC

3.1800(a)(9)), accompanied by a declaration stating that the fees were

calculated in accordance with the fee schedule as per Local Rule 3.214. Where a request for attorney fees is based on

a contractual provision the specific provision must be cited; (Local Rule

3.207); and

(9) A proposed form

of judgment (CRC 3.1800(a)(6));

(10) Where an

application for default judgment is based upon a written obligation to pay

money, the original written agreement should be submitted for cancellation (CRC

3.1806). A trial court may exercise its discretion to accept a copy where the original document was lost or destroyed by ordering the clerk to cancel the copy instead (Kahn v. Lasorda's Dugout, Inc. (2003) 109 Cal.App.4th 1118, 1124);

(11) Where the plaintiff seeks damages for personal injury or wrongful death, they must serve a statement of damages on the defendant in the same manner as a summons (Code Civ. Proc. § 425.11, subd. (c), (d)). (California Rules of Court, rule 3.1800.)

Pursuant to Code Civ. Proc., § 1033.5(a)(1), items are allowable as costs under Section 1032 if they are "filing, motion, and jury fees."

A party who defaults only admits facts that are well-pleaded in the complaint or cross-complaint. (Molen v. Friedman (1998) 64 Cal.App.4th 1149, 1153-1154.) Thus, the complaint must state a claim for the requested relief.

Discussion

Service of the Complaint and Summons

According

to the proof of service filed on March 4, 2026, Defendant was served on September 4, 2025 at 3122 W. 60th Street, Los Angeles, CA 90043-3157 via personal service.

Dismissal of Other Parties

The Doe defendants have not been dismissed from this action

as required by California Rules of Court, rule 3.1800(a)(7).

Moreover, although arguing in its memorandum of points and authorities in support of default judgment that defendants MERS and HFA entered into a stipulation for judgment, the Court advises Plaintiff that the stipulation as to defendants MERS and HFA was rejected on January 6, 2026.

Form CIV-100

Plaintiff has filed a form CIV-100 seeking default judgment.

Non-Military Status

The form CIV-100 seeking default judgment sets forth the non-military status of defendant. (See CIV-100 Form at ¶ 8.)

Summary of the Case

In its memorandum of points and authorities in support of default judgment, which was filed on June 9, 2026, Plaintiff sets forth the factual and procedural background of this action. (Memo. of Ps and As at pp. 1-2.)

Evidence of Damages

“Code of Civil Procedure section 580 prohibits the entry of

a default judgment in an amount in excess of that demanded in the complaint.” (Kim v. Westmoore Partners, Inc. (2011)

201 Cal.App.4th 267, 286.) Moreover, “a statement of damages cannot be relied

upon to establish a plaintiff’s monetary damages, except in cases of personal

injury or wrongful death.” (Ibid.) “In all other cases, when recovering

damages in a default judgment, the plaintiff is limited to the damages

specified in the complaint.” (Ibid.) Moreover, a plaintiff must submit admissible

evidence supporting a prima facie case for the damages or other relief

requested (Johnson v. Stanhiser (1999)

72 Cal.App.4th 357, 361-362.)

Aaron Angelilli (“Angelilli”) avers that Defendant owes a

total of \$578,619.05 pursuant to a loan modification agreement between

Plaintiff and Defendant. (Angelilli Decl., ¶¶ 9-11; Exhs. 2, 5.) However,

besides the statement in the declaration of Mr. Angelilli, there is no

documentation showing that Defendant failed to make payments since July 1, 2024

as Mr. Angelilli attests. (Angelilli Decl., ¶ 11.) Thus, the evidence of

damages is insufficient.

Prejudgment Interest

“(a) A person who is entitled to recover damages certain, or

capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.

(b) Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed."

(Civ. Code, § 3287.)

"(a) Any legal rate of interest stipulated by a contract remains chargeable after a breach thereof, as before, until the contract is superseded by a verdict or other new obligation.

(b) If a contract entered into after January 1, 1986, does not stipulate a legal rate of interest, the obligation shall bear interest at a rate of 10 percent per annum after a breach."

(Civ. Code, § 3289.)

The Complaint requests interest on the unpaid loan amount. (Complaint at p. 5:6-9.) The declaration of Mr. Angelilli does not provide interest computations. The memorandum of points and authorities in support of the default judgment also does not set forth interest computations. Plaintiff has not complied with Cal. Rules of Court, Rule 3.1800(a)(3).

Memorandum of Costs and Disbursements

Plaintiff includes a memorandum of costs in the submitted Form CIV-100, which sets forth costs in the sum of \$1,641.05.

Attorney's Fees

Plaintiff

requests \$5,670.00 in attorney's fees.

Plaintiff, however, has not indicated whether attorney fees are allowed by statute or by agreement of the parties. (Cal. Rules of Court, Rule 3.1800(a)(9).)

Proposed Form of Judgment

Plaintiff

has submitted a proposed form of judgment.

Submission of the Written Agreement

California

Rule of Court 3.1806 states that "unless otherwise ordered" judgment upon a

written obligation to pay money requires a clerk's note across the face of the writing that there has been a judgment. Here, Plaintiff has not submitted the original documents. The Court does not discern any practical need for such a clerk's note on the written obligation in the current case and therefore orders that it need not be included. If this causes any issues for any party or non-party, they are authorized to bring the matter to the Court's attention.

Statement of Damages

Plaintiff does not need to submit a statement of damages because this is not a personal injury or wrongful death case.

Based on the foregoing, Plaintiff's request for default judgment against Defendant is DENIED WITHOUT PREJUDICE.